

9:00 14	25CV479082	Ahead Magnetics vs IsenseCloud, Inc.	Defendant moves this court to quash Plaintiff's subpoena of documents and deposition. Defendant argues that Plaintiff's subpoenas are overbroad and premature. This court disagrees. The subpoenas issued by Plaintiff are relevant to the causes of action filed by Plaintiff and specifically restrict Plaintiff from receiving privileged documents. Defendant's motion to quash is DENIED. This court does find that Defendant did not act in bad faith in not responding to Plaintiff's subpoena. Plaintiff's request for sanctions is DENIED.
9:00 15	26CV486523	Imelda Ayala vs. Don Miguel Burrito	Defendant files a demurrer to Plaintiff's complaint. Plaintiff filed no opposition to Defendant's demurrer. In addition, Plaintiff's complaint is time barred and states no legal cause of action. Defendant's demurrer is GRANTED WITHOUT LEAVE TO AMEND.

Calendar Lines 5-7

Case Name: *"Janine" Chun Lu v. Marc Goubert et al.*

Case No.: 23CV428070

Samuel and Serena Arvayo (the "Arvayo Defendants") demur to the first amended complaint ("FAC") filed by plaintiff "Janine" Chun Lu ("Lu"). The Arvayo Defendants have also brought a special motion to strike the FAC under Code of Civil Procedure section 425.16. Lu has filed a motion for summary judgment, or in the alternative, summary adjudication, as to the cross-complaint filed by Samuel, Serena, and Ezekiel Arvayo ("Cross-complainants").¹

I. THE ARVAYO DEFENDANTS' SPECIAL MOTION TO STRIKE

A. Request for Judicial Notice

The court GRANTS the Arvayo Defendants' request for judicial notice in support of their special motion to strike. (Request for Judicial Notice in Support of the Arvayo Defendants' Special Motion to Strike, Ex. A; Evid. Code, § 452, subd. (d).)

B. General Legal Standards

Code of Civil Procedure section 425.16 authorizes a person to bring a special motion to strike allegations "arising from any act . . . in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue." (Code Civ. Proc., § 425.16, subd. (b)(1).) This is commonly referred to as an "anti-SLAPP" motion.

¹ At various points, the court refers to Cross-complainants by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)